

Amendment No. 1 to SB1084

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1084

House Bill No. 923*

by deleting all language after the enacting clause and substituting:

SECTION 1. This act is known and may be cited as the "Dismantling DEI Departments Act."

SECTION 2. Tennessee Code Annotated, Title 4, Chapter 1, Part 4, is amended by adding the following as a new section:

(a)

(1) A department, agency, or other unit of state government shall not use a discriminatory preference in an effort to increase diversity, equity, or inclusion or establish or maintain an office, division, or department for such purposes. All mandates, policies, programs, activities, guidance, regulations, enforcement actions, consent orders, or other declarations of a department, agency, or other unit of state government, or an office, division, or department thereof, in existence prior to the effective date that are in conflict with this section of this act are void.

(2) As used in this subsection (a), "discriminatory preference":

(A) Means a policy, practice, or requirement that grants or withholds benefits, opportunities, advantages, or disadvantages to an individual or group based on race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, veteran status, or lawful eligibility criteria; and

(B) Does not include:

(i) Public health, medical research, or disease prevention programs that use demographic-based outreach for medically substantiated reasons, such as initiatives addressing health conditions that disproportionately affect specific populations; or

(ii) Lawful and neutral outreach programs that ensure equal access to state services or contracting based on objective eligibility criteria, so long as such programs do not mandate quotas, alter selection criteria, or require preferential treatment based on demographic characteristics.

(b)

(1) This section does not apply to a department, agency, or other unit of state government that submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a department, agency, or other unit of state government and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the department, agency, or other unit of state government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts a department, agency, or other unit of state government from this section, the department, agency, or other unit of state government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A department, agency, or other unit of state government shall notify

the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

SECTION 3. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by adding the following as a new section:

(a)

(1) A county government shall not use a discriminatory preference in an effort to increase diversity, equity, or inclusion or establish or maintain an office, division, or department for such purposes. All mandates, policies, programs, activities, guidance, regulations, enforcement actions, consent orders, or other declarations of a county government, or an office, division, or department thereof, in existence prior to the effective date that are in conflict with this section of this act are void.

(2) As used in this subsection (a), "discriminatory preference" means a policy, practice, or requirement that grants or withholds benefits, opportunities, advantages, or disadvantages to an individual or group based on race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, or lawful eligibility criteria.

(b)

(1) This section does not apply to a county government that submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a county government and, if the comptroller finds that compliance would result in

the loss of federal funding, then the comptroller shall notify the county government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts a county government from this section, the county government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A county government shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

SECTION 4. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

(a)

(1) A municipal government shall not use a discriminatory preference in an effort to increase diversity, equity, or inclusion or establish or maintain an office, division, or department for such purposes. All mandates, policies, programs, activities, guidance, regulations, enforcement actions, consent orders, or other declarations of a municipal government, or an office, division, or department thereof, in existence prior to the effective date that are in conflict with this section of this act are void.

(2) As used in this subsection (a), "discriminatory preference" means a policy, practice, or requirement that grants or withholds benefits, opportunities, advantages, or disadvantages to an individual or group based on race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, or lawful eligibility criteria.

(b)

(1) This section does not apply to a municipal government that submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption

is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a municipal government and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the municipal government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts a municipal government from this section, the municipal government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A municipal government shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

SECTION 5. Tennessee Code Annotated, Title 7, Chapter 3, Part 1, is amended by adding the following as a new section:

(a)

(1) A metropolitan government shall not use a discriminatory preference in an effort to increase diversity, equity, or inclusion or establish or maintain an office, division, or department for such purposes. All mandates, policies, programs, activities, guidance, regulations, enforcement actions, consent orders, or other declarations of a metropolitan government, or an office, division, or department thereof, in existence prior to the effective date that are in conflict with this section of this act are void.

(2) As used in this subsection (a), "discriminatory preference" means a policy, practice, or requirement that grants or withholds benefits, opportunities, advantages, or disadvantages to an individual or group based on race, ethnicity,

sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, or lawful eligibility criteria.

(b)

(1) This section does not apply to a metropolitan government that submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a metropolitan government and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the county government in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts a metropolitan government from this section, the metropolitan government shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A metropolitan government shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

SECTION 6. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

(a)

(1) A public institution of higher education in this state shall not use a discriminatory preference in an effort to increase diversity, equity, or inclusion or establish or maintain an office, division, or department for such purposes. All mandates, policies, programs, activities, guidance, regulations, enforcement actions, consent orders, or other declarations of a public institution of higher

education, or an office, division, or department thereof, in existence prior to the effective date that are in conflict with this section of this act are void.

(2) As used in this subsection (a), "discriminatory preference" means a policy, practice, or requirement that grants or withholds benefits, opportunities, advantages, or disadvantages to an individual or group based on race, ethnicity, sex, age, or any other demographic characteristic, rather than on individual merit, qualifications, or lawful eligibility criteria.

(b)

(1) This section does not apply to a public institution of higher education that submits notice in writing to the comptroller of the treasury that compliance with this section would result in a loss of federal funding, to the extent such an exemption is necessary to conform to federally awarded or amended contracts, subcontracts, or postsecondary grants as a condition to receipt of federal funds. The comptroller of the treasury shall create guidelines as to what information is required in the notice. The comptroller shall review a notice submitted by a public institution of higher education and, if the comptroller finds that compliance would result in the loss of federal funding, then the comptroller shall notify the public institution of higher education in writing of its exemption.

(2) After one (1) calendar year from the date on which the comptroller exempts a public institution of higher education from this section, the public institution of higher education shall submit in writing to the comptroller to have the exemption renewed for an additional one-year period. A public institution of higher education shall notify the comptroller within fourteen (14) days if the conditions or justifications for the comptroller granting the exemption no longer exist.

SECTION 7. Tennessee Code Annotated, Section 8-1-111, is amended by deleting the section and substituting instead:

(a) Notwithstanding any law to the contrary, the governor shall not grant preferential treatment when making appointments to any board, commission, committee, or other governing or advisory entity of the executive branch of state government on the basis of race.

(b) In appointing citizens to serve on boards, commissions, committees, and other governing or advisory entities of the executive branch of state government, the governor shall strive to ensure that all appointments be made based on individual merit, qualifications, and the needs of the board, commission, committee, or other governing or advisory entity.

SECTION 8. Tennessee Code Annotated, Section 4-8-301(a)(2), is amended by deleting subdivisions (B) and (C).

SECTION 9. Tennessee Code Annotated, Section 4-10-103, is amended by deleting subsection (k).

SECTION 10. Tennessee Code Annotated, Section 4-11-102, is amended by deleting subdivision (e)(1).

SECTION 11. Tennessee Code Annotated, Section 4-11-106(a)(2), is amended by deleting the third sentence.

SECTION 12. Tennessee Code Annotated, Section 4-11-302, is amended by deleting subdivision (a)(9).

SECTION 13. Tennessee Code Annotated, Section 4-14-203, is amended by deleting subsection (i).

SECTION 14. Tennessee Code Annotated, Section 4-20-101, is amended by deleting subdivision (a)(2).

SECTION 15. Tennessee Code Annotated, Section 4-20-107, is amended by deleting the section.

SECTION 16. Tennessee Code Annotated, Section 4-20-301, is amended by deleting subsection (i).

SECTION 17. Tennessee Code Annotated, Section 4-23-202(a)(2), is amended by deleting the fourth sentence of the subdivision and substituting instead:

In appointing private citizens to serve on the Tennessee residence commission, the governor shall strive to ensure that at least one (1) such citizen is a resident of the City of Oak Hill.

SECTION 18. Tennessee Code Annotated, Section 4-24-104, is amended by deleting subsection (d).

SECTION 19. Tennessee Code Annotated, Section 4-28-105, is amended by deleting subsection (g).

SECTION 20. Tennessee Code Annotated, Section 4-28-106, is amended by deleting subsection (g).

SECTION 21. Tennessee Code Annotated, Section 4-49-105, is amended by deleting subsection (h) and substituting instead:

(h) In making appointments to the council, the appointing authorities shall strive to ensure that the council has experience in:

- (1) The sports industry;
- (2) Accounting; and
- (3) Law enforcement.

SECTION 22. Tennessee Code Annotated, Section 4-51-103, is amended by deleting subsection (d).

SECTION 23. Tennessee Code Annotated, Section 4-51-112, is amended by deleting the section.

SECTION 24. Tennessee Code Annotated, Section 4-56-106, is amended by deleting subdivision (a)(6).

SECTION 25. Tennessee Code Annotated, Section 6-54-114(b), is amended by deleting the last sentence.

SECTION 26. Tennessee Code Annotated, Section 7-4-109, is amended by deleting subdivision (a)(2).

SECTION 27. Tennessee Code Annotated, Section 7-53-313, is amended by deleting the section.

SECTION 28. Tennessee Code Annotated, Section 7-54-113(a), is amended by deleting the second sentence.

SECTION 29. Tennessee Code Annotated, Section 7-67-108, is amended by deleting subdivision (a)(4)(C)(iv) and the last sentence of subdivision (a)(4)(B).

SECTION 30. Tennessee Code Annotated, Section 7-82-307, is amended by deleting subsection (e) and subdivision (g)(4).

SECTION 31. Tennessee Code Annotated, Section 7-82-701(c)(1)(E), is amended by deleting the subdivision and substituting instead:

(E) One (1) member, appointed by the governor, who has experience in governmental finance and is not a state employee;

SECTION 32. Tennessee Code Annotated, Section 7-86-105(b)(2), is amended by deleting the last sentence.

SECTION 33. Tennessee Code Annotated, Section 7-86-302, is amended by deleting subdivision (b)(3)(A).

SECTION 34. Tennessee Code Annotated, Section 7-89-108(a)(4), is amended by deleting the second and third sentences and substituting instead:

The chief executive officer of the municipality shall strive to ensure that the board is composed of directors who are diverse in professional background, educational background, geographic residency, perspective, and experience.

SECTION 35. Tennessee Code Annotated, Section 8-1-111, is amended by deleting the section.

SECTION 36. Tennessee Code Annotated, Section 8-30-108(c)(1), is amended by deleting the subdivision and substituting instead:

(1) The governor shall appoint the members of the board of appeals from the public at large.

SECTION 37. This act takes effect upon becoming a law, the public welfare requiring it.